

If a legal or equitable interest be given to a body corporate, and *no special purpose* be declared, the donor has plainly implied that the estate shall be under the general statutes and rules of the society, and be regulated in the same manner as the rest of their property (*d*): but if a *particular and special trust* be annexed to the gift, *that* excludes the visitatorial power of the original founder; and the Court, viewing the corporation in the light of an ordinary trustee, will determine all the same questions as would have fallen under its jurisdiction had the administration of the fund been entrusted to the hands of individuals (*e*).

* 7. **Private foundation with a charter.**—Where a [*530] private person founds a charity, and then the Crown grants a charter, the presumption is that the Crown meant to carry out the founder's intentions, and the jurisdiction of the Court which existed before will be continued (*a*).

8. **Cases where the visitatorial power may be exercised by the Lord Chancellor.**—Even the *visitatorial* power may, under particular circumstances and in a special manner, be exercised by the Lord Chancellor; for the Crown may be visitor by the terms of the foundation; and, if the heir of the founder cannot be discovered (*b*), or become lunatic (*c*), the visitatorial power, rather than that the corporation should not be visited at all, will result to the Crown. And while in *civil* corporations the Crown is visitor through [the High Court of Justice (*d*)]; (for corporate bodies which respect the public policy of the country and the administration of justice, are necessarily better regulated under the superintendence of a Court of law:) yet, as regards *eleemosynary* corporations, the Crown's visitatorial power is committed to the Lord Chancellor, as in matters of charity the more ap-

(*d*) *Id.* 473, *per eundem*; *Ex parte Inge*, 2 R. & M. 596, *per* Lord Brougham; *Attorney-General v. Clare Hall*, 3 Atk. 675, *per* Lord Hardwicke.

(*e*) *Green v. Rutherford*, 1 Ves. sen. 462.

(*a*) *Attorney-General v. Dedham School*, 23 Beav. 350.

(*b*) *Ex parte Wrangham*, 2 Ves. jun. 609; *Attorney-General v. Earl*

of Clarendon, 17 Ves. 498, *per* Sir W. Grant; *Attorney-General v. Black*, 11 Ves. 191; *Case of Queen's College, Cambridge*, Jac. 1.

(*c*) *Attorney-General v. Dixie*, 13 Ves. 519, *see* 533.

[(*d*) This visitatorial power was formerly exercised through the Court of Queen's Bench, but by 36 & 37 Vict. c. 66, the jurisdiction of the